

25PSCV03430 25PSCV03430

County: los-angeles

Division: Civil Law and Motion

Department: G

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Case Number: 25PSCV03430 Hearing Date: September 1, 2026 Dept: G

Plaintiff

Janine Lyn Hernandez's Motion to Vacate Dismissal

Respondent:

NO OPPOSITION

TENTATIVE

RULING

Plaintiff

Janine Lyn Hernandez's Motion to Vacate Dismissal is GRANTED.

BACKGROUND

This

is a premises liability action. On

September 23, 2023, plaintiff Janine Lyn Hernandez (Hernandez) allegedly slipped and fell on property owned or controlled by defendants Starwood Retail Partners, LLC (Starwood), Pacific Retail Capital Partners (Pacific Retail), Plaza West Covina LP (Plaza West Covina), J.C. Penney Properties, Inc. (JCP Properties), J.C. Penney Corp., Inc. (JCP Corp.), and CTL Propco I LLC (CTL).

On

September 23, 2025, Hernandez filed the Complaint. The same day, Hernandez filed the operative Amended Complaint, alleging causes of action for (1) general negligence and (2) premises liability.

On

June 29, 2026, the court dismissed JCP Properties without prejudice based on the failure to serve it in this action.

On

July 22, 2026, Hernandez filed this motion to vacate dismissal, which is unopposed.

The

motion is set for hearing on September 1, 2026.

ANALYSIS

Hernandez

moves to vacate JCP Properties dismissal based on attorney error. For the following reasons, the motion is GRANTED.

Legal

Standard

The

court must vacate a judgment or dismissal (1) if the motion to vacate was filed within six months and (2) if the judgment or dismissal was the result of the attorney's mistake, inadvertence, surprise, or neglect. (Code Civ. Proc., § 473, subd. (b).) The attorney must include a sworn affidavit

attesting to their mistake, and the court must direct the attorney to pay reasonable compensatory legal fees and costs to opposing counsel and parties. (Ibid.) To obtain relief under the mandatory provision, "counsel need not show that his or her mistake, inadvertence, surprise or neglect was excusable. No

reason need be given for the existence of one of these circumstances. Attestation that one of these reasons existed is sufficient to obtain relief unless the trial court finds that the dismissal did not occur because of these reasons."

(Graham v. Beers (1994) 30 Cal.App.4th 1656, 1660.) "The six-month time limit for granting statutory relief is jurisdictional and the court may not consider a motion for relief [under Section 473] made after that period has elapsed." (Manson, Iver & York v. Black (2009) 176 Cal.App.4th 36, 42, emphasis added.)

Discussion

Here,

the court dismissed JCP Properties on June 29, 2026 based Hernandez's failure

to serve it. (See 6/29/2026 Min. Order, p. 1.) Hernandez filed this motion on July 22, 2026, before the six-month jurisdiction deadline. (See Mot., p. 1; see also Code Civ. Proc., § 473, subd. (b).) Hernandez's counsel attests in her sworn declaration that she did not serve JCP Properties because she attempted service at the wrong address, which she did not discover until after the dismissal. (See Mot., Javid Decl., ¶¶ 9–10.) The court finds that counsel has submitted a sufficient basis to grant the motion under Code of Civil Procedure 473, subdivision (b). (See Graham, *supra*, 30 Cal.App.4th at 1660, stating, “No reason need be given for the existence of [mistake, inadvertence, surprise, or neglect]. Attestation that one of these reasons existed is sufficient to obtain relief. . . .”)

Therefore,
the motion to vacate dismissal is GRANTED.

CONCLUSION

For
these reasons, the motion to set vacate dismissal is GRANTED.